Master Services Agreement

Version effective as of November 4, 2026

This Master Services Agreement ("MSA") is between Elkhorn Digital, LLC, a Nebraska limited liability company ("Contractor"), and the Client named in the applicable Order Form. It covers every Order Form that references it. Each Order Form (see Exhibit A, including the signature page) identifies the Client, start date, selected services, and fees. Contractor and Client are each a "Party" and together the "Parties."

The idea is simple: these terms are set once, and each new client signs a short Order Form instead of a full contract. If anything in an Order Form conflicts with this MSA, the Order Form wins on the commercial details (who, what, how much); the MSA governs everything else.

1. Services

1.1 Scope of Services. Contractor will design, build, deploy, host, and maintain a custom website and software platform for Client (the "Platform") on Contractor's own shared, multitenant infrastructure, configured to Client's business, branding, and the plan and add-ons selected in the Order Form. The plan descriptions in Elkhorn Digital's Fee Schedule in effect on the effective date of the applicable Order Form (the "Fee Schedule") describe the features included in each plan (Starter, Pro, or Elite) and the add-ons available. Those plan descriptions, together with any scope approved under Section 1.2, are the "Specifications." They are part of this Agreement, but they are not rigid technical specifications. Contractor retains discretion over implementation details, technology choices, and design decisions, and may add to or improve the Platform's features over time.

1.2 Change orders. Either Party may propose changes to the scope, features, or timeline. No change is binding until both Parties agree in writing (email is sufficient) on the revised scope, any additional fees, and any adjusted timeline. Contractor is not required to perform out-of-scope work without an approved change order.

1.3 Client cooperation. Client will provide content, feedback, approvals, and any account credentials Contractor reasonably needs to perform the Services, in a timely manner. Delays caused by Client will not constitute a breach by Contractor, and Contractor may adjust the project timeline accordingly.

1.4 Review and acceptance. When Contractor delivers the initial build (or a major milestone), Client has 10 business days to flag anything that does not match the Specifications. Contractor will fix verified issues within a reasonable time. If Client does not flag anything within those 10 business days, the deliverable is considered accepted.

1.5 Change requests. Client may request updates to its site's content and design at any time through the request feature in Client's admin dashboard or by email. Reasonable content and design updates within Client's plan are included in the monthly fee, with no per-request limit. Requests that, taken together, are unreasonable in volume or scope (for example, a redesign or rebuild, or repeated reversals of approved work) may be treated as change orders under Section 1.2. Contractor will make reasonable efforts to complete requests promptly but does not guarantee a specific turnaround time. Requests for new features, new kinds of pages or sections the Platform does not offer, or other custom development are change orders under Section 1.2.

1.6 Design versions and updates. When the Platform goes live, the design of Client's site is fixed at the version Client approved. Contractor may improve the Platform's designs over time but will not

apply a design change to Client's live site unless Client approves it, for example by approving a preview Contractor sends. Contractor may apply security fixes, bug fixes, and changes needed to keep the Platform working, lawful, or secure without prior approval. Contractor keeps a history of Client's site versions and will, on request, restore an earlier version where reasonably possible. If maintaining an earlier design version becomes impractical or unsafe, Contractor may retire it on at least 90 days' written notice and will offer Client a preview of a current design.

1.7 Plan changes and add-ons. Client may move to a different plan, or add or remove add-ons, by written request (email is sufficient). A change takes effect when Contractor confirms it in writing. Moving to a higher plan may require paying the difference in the start fee. Moving to a lower plan removes features that the lower plan does not include, unless Client keeps them as paid add-ons. Any resulting change to the monthly fee begins on the next billing date. A change of plan during the Initial Term must be confirmed in an amended Order Form that states the new Deferred Build Balance and Initial Term, credits the amounts Client has already paid toward its Deferred Build Balance, and does not forgive any part of the Deferred Build Balance that remained unpaid at the time of the change.

2. Fees and Payment

2.1 Fees. The fees for the work are stated in the Order Form. They may follow the standard tiers in the Fee Schedule or be a custom arrangement. Unless the Order Form says otherwise, the following payment rules apply.

2.2 Start fee and build fee.

> **A start fee is due** when Client signs the Order Form, before work begins, and is non-refundable once work starts. The rest of the build fee (the "Deferred Build Balance," stated in the Order Form) is paid through the monthly fee during an initial term beginning when the Platform goes live (the "Initial Term"). The start fee plus the Deferred Build Balance equals the full build fee for the plan stated in the Fee Schedule. The Initial Term is the number of monthly payments stated in the Order Form. For the current plans, that is 12 monthly payments for Starter, 20 for Pro and 28 for Elite. If the engagement ends before the Initial Term is complete for any reason other than Contractor's uncured material breach (after notice and cure under Section 8.5) or Contractor's termination for convenience under Section 8.2, Client will pay the unpaid portion of the Deferred Build Balance, calculated as the Deferred Build Balance multiplied by the number of monthly payments remaining in the Initial Term, divided by the total number of monthly payments in the Initial Term. Payments remaining are counted as of the effective date of termination, and monthly payments made during any notice period count as paid. This amount is the unpaid price of the build that Client agreed to pay in installments, not a penalty, and is due within 15 days after the effective date of termination. Client does not owe the remaining monthly fees themselves. After the Initial Term, the engagement continues month to month at the same monthly fee unless it changes under Section 2.5.

2.3 Monthly fee. The recurring monthly (or annual) fee in the Order Form covers hosting, security updates, and support. Monthly fees are billed in advance on the same date each month, starting when the Platform goes live. Annual fees are billed in advance for the full year. If the Order Form has no recurring fee, this section does not apply.

2.3.1 Annual billing. If Client elects annual billing, the Order Form will state the annual amount. The annual term begins when the Platform goes live and renews automatically each year unless either

Party gives at least 30 days' notice before the end of the current annual period. If Client terminates mid-year, the annual fee for that year is non-refundable. If Contractor terminates mid-year for its own convenience, Contractor will refund Client for the remaining full months. A termination notice by Client during an annual term takes effect at the end of that annual period (not 30 days after notice) unless both Parties agree to an earlier date. Contractor's termination for convenience under Section 8.2 takes effect 30 days after notice, with the refund described above. Annual billing is available only after the Initial Term has ended.

2.4 Late payment. If a payment is more than 10 days late, Contractor may charge interest at 1.33% per month (16% per year) or, if less, the maximum rate allowed by law from the due date and may suspend Client's access to the admin dashboard until payment is made. Client is responsible for any reasonable collection costs, including attorney fees, to the extent permitted by law. Contractor is not liable for any business impact caused by a suspension due to non-payment. A payment more than 30 days late is grounds for termination under Section 8.

2.5 Price changes. Contractor may change the recurring fee with at least 30 days' written notice (email is sufficient). The notice will state the new price and its effective date. If Client does not accept the new price, Client may terminate before the change takes effect with no penalty (but Section 2.2 still applies to any unpaid Deferred Build Balance), and any prepaid fees for the period after termination will be refunded. If Client continues using the Platform after the new price takes effect, that constitutes acceptance. One-time fees already paid are not affected by price changes.

2.5.1 Price protection. Contractor will not increase Client's monthly fee for Client's current plan and add-ons during the first 12 months after the Platform goes live. Add-ons added later are priced at the Fee Schedule in effect when Client adds them.

2.6 Taxes. Prices in the Order Form do not include sales tax or similar taxes. Client pays those, except for taxes on Contractor's income.

3. Hosting and Infrastructure

3.1 Platform infrastructure. The Platform runs on Contractor's own shared, multitenant hosting infrastructure (currently Cloudflare and Supabase), which Contractor owns, configures, and maintains. Client does not receive credentials to that underlying infrastructure.

3.2 Client's domain. Client keeps full ownership and control of its own domain at all times. To connect it, Client adds the DNS record Contractor provides (typically a single CNAME record pointing to Contractor's routing hostname). Contractor's hosting provider then issues and renews the security certificate for Client's domain automatically. Contractor does not require Client to transfer domain registration, nameservers, or DNS management to Contractor.

3.3 Admin access. Client will have secured logins to its own administrative dashboard, scoped to Client's own data, to run its business day to day. Contractor creates these logins by email invitation for the people Client designates. Client is responsible for keeping its logins secure and for actions taken through them. Contractor's own administrators may access Client's dashboard and data only as needed to provide the Services, support Client, or keep the Platform secure.

3.4 Email. Transactional emails related to the Platform (for example build status updates, review requests, back-in-stock notices, and login invitations) are sent from Contractor's own sending domain, using Client's business name as the sender name and Client's contact email as the reply-to address, so replies go directly to Client. No DNS changes on Client's domain are required for this.

Contractor will not use Client's name or data to send anything unrelated to the Services. Client is responsible for having the right to contact the people its site emails.

3.5 No uptime guarantee. The Platform depends on third-party services (Cloudflare, Supabase) that Contractor does not control. Contractor will make reasonable efforts to keep things running and respond to outages, but does not guarantee the Platform will be available 100% of the time.

3.6 Third-party data. Some features rely on third-party or public data, such as the FFL dealer lookup, which uses the federal government's published licensee listing that Contractor refreshes periodically. That data may be incomplete or out of date between updates and is provided for convenience only. It is not a substitute for Client's own verification obligations, including confirming a receiving dealer's license before any firearm transfer. Contractor does not verify any person's license and is not responsible for any firearm sale or transfer.

3.7 Payments. If Client's plan includes online sales, payments are processed through Client's own merchant account with a payment processor that Client contracts with directly. Contractor may help Client apply for that account, but Contractor is not a party to it, does not act as a payment facilitator, and never receives or holds Client's sales proceeds. Client is solely responsible for processor approval and terms (including any reserves, fees, and chargebacks), for which products it offers for online sale, and for complying with all laws and processor rules that apply to those sales. Any product category controls the Platform provides are a convenience, not a compliance guarantee.

3.8 Records. The Platform is a convenience tool. Unless the Order Form says otherwise, it is not Client's required system of record for any federal, state or local firearms record-keeping requirement (including acquisition and disposition records and transfer forms), and Client remains solely responsible for keeping those records as the law requires.

4. Data Ownership and Export

4.1 Client owns all business data entered into the Platform.

4.2 On request (or automatically when the engagement ends), Contractor will export Client's data in a standard format (CSV, JSON, or similar) within 10 business days.

4.3 Contractor will not use, sell, or share Client's data except to provide the Services, comply with law, or as Client separately authorizes in writing.

4.4 Data security. Contractor will take reasonable steps to protect Client data from unauthorized access. If Contractor confirms a security breach affecting Client's data, Contractor will notify Client in writing within 72 hours after confirming it and cooperate in addressing it. Client is responsible for any legally required notifications to affected individuals under Nebraska law (Neb. Rev. Stat. § 87-801 et seq.).

4.5 Deletion after export. Once Client's data has been exported under this Section following termination of the engagement, Contractor will delete Client's data from the Platform within a reasonable time, except as reasonably necessary to comply with law or resolve a then-pending dispute.

4.6 Client's customer information. Information about Client's own customers collected through the Platform (for example names, email addresses, and phone numbers submitted through intake forms, build records, or back-in-stock requests) is Client's data under this Section 4. Contractor processes it only on Client's behalf to provide the Services. Client is responsible for any notices to, and consents from, its customers that apply to Client's collection and use of that information.

4.7 Service providers; data addendum. Client authorizes Contractor to use third-party service providers (currently Cloudflare, Supabase and Contractor's email delivery provider) to host, store and process Client's data to provide the Services. If Client or applicable law requires a data processing addendum, the Parties will sign Contractor's standard form.

5. Intellectual Property

5.1 Platform ownership. Contractor retains all ownership of the Platform, including the source code, design system, reusable components, and any improvements to the platform, whether built before, during, or after this engagement.

5.2 Platform license. Client receives a non-exclusive license to use its deployed instance of the Platform for the term of this Agreement. Client may not sublicense or transfer the Platform, except to a buyer of Client's business (merger, acquisition, or sale of substantially all of Client's business), provided the buyer agrees in writing to these terms and Client notifies Contractor within 30 days after closing. This license does not convey ownership of the underlying code or technology.

5.3 Client content. Client owns all content it provides or creates using the Platform (text, photos, business data) and grants Contractor a license to host, display, and process that content solely to provide the Services.

5.4 When the agreement ends, Client's license to use the Platform ends too. Client's data export rights under Section 4 are not affected.

6. Confidentiality and Case Studies

6.1 Definition. "Confidential Information" means non-public information either Party shares with the other in connection with this Agreement, including business plans, customer data, pricing, technical details, source code, and similar information. It does not include information that: (a) is already public through no fault of the receiving Party; (b) the receiving Party already knew before disclosure; (c) the receiving Party developed independently without use of the disclosing Party's information; or (d) a third party provided without any confidentiality restriction.

6.2 Obligations. Each Party will: (a) use the other Party's Confidential Information only for purposes of this Agreement; (b) limit access to employees, contractors, and advisors who need it and who are bound by similar confidentiality obligations; and (c) protect it with at least the same care it uses for its own confidential information, and in no event less than reasonable care.

6.3 Duration. Confidentiality obligations last for 3 years after this Agreement ends. Trade secret protections continue for as long as the information qualifies as a trade secret under the Nebraska Trade Secrets Act (Neb. Rev. Stat. §§ 87-501 to 87-507).

6.4 Equitable relief. Both Parties acknowledge that a breach of this Section could cause harm that monetary damages alone cannot adequately remedy. Either Party may seek injunctive or other equitable relief to enforce this Section without posting a bond, in addition to any other available remedies.

6.5 Case studies. Contractor may mention the engagement (Client's business name, logo, industry, screenshots of Client's public pages, and a general description of the work) in its marketing, portfolio, and sales conversations, unless Client objects in writing. This Section 6.5 is an exception to Section 6.1. It does not permit disclosure of Client's non-public data or of anything in Client's admin dashboard.

7. Warranties

7.1 Limited warranty. Contractor warrants that: (a) the Services will be performed in a professional, competent manner; (b) the Platform will substantially conform to the Specifications for 60 days after acceptance under Section 1.4; and (c) Contractor has the authority to enter into this Agreement. If the Platform does not conform to the Specifications during that 60-day period, Contractor will correct the issue or, if correction is not feasible within a reasonable time, refund or credit the portion of the build fee (including the Deferred Build Balance) attributable to the nonconforming work.

7.2 Disclaimer. EXCEPT FOR SECTION 7.1 ABOVE, THE PLATFORM AND SERVICES ARE PROVIDED "AS IS." CONTRACTOR MAKES NO OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NONINFRINGEMENT, TO THE FULLEST EXTENT PERMITTED BY LAW.

8. Term and Termination

8.1 Term. Each engagement begins on the date in the Order Form. Once the Platform goes live, the engagement continues month to month until terminated by either Party under this Section, except that the Initial Term under Section 2.2 applies first. If the Order Form specifies annual billing, the annual term under Section 2.3.1 applies instead of the month-to-month default.

8.2 Termination for convenience. Subject to Section 2.3.1, either Party may terminate for any reason with 30 days' written notice. Monthly fees continue through the notice period. If Client terminates during the Initial Term, Section 2.2 applies to the unpaid Deferred Build Balance. If Contractor terminates for convenience, Client owes no Deferred Build Balance, and Contractor will refund any prepaid fees for the period after termination.

8.3 Immediate termination. Contractor may terminate immediately if Client's payment is more than 30 days past due or if Client uses the Platform for any unlawful purpose. If Contractor terminates under this Section 8.3, Section 2.2 applies to any unpaid Deferred Build Balance.

8.4 Post-termination. When the engagement ends, Contractor will export Client's data per Section 4 and take the Platform offline within a reasonable time after the engagement ends. Client's domain, which Client has controlled at all times under Section 3.2, is unaffected and remains fully under Client's control. Client should remove Contractor's routing DNS record from its domain once the Platform is offline.

8.5 Termination for breach. Either Party may terminate an Order Form by written notice if the other Party materially breaches this Agreement and does not cure the breach within 30 days after receiving written notice describing it. If Contractor terminates under this Section 8.5, Section 2.2 applies to any unpaid Deferred Build Balance.

8.6 Licenses and suspension. Client will keep in force every license, registration and permit its business requires, including its federal firearms license, will give Contractor a copy on request, and will tell Contractor within 5 business days of any revocation, suspension, denial of renewal or other regulatory action affecting them. Contractor may suspend all or part of the Platform immediately, with notice to Client, if any of those licenses lapses or is revoked or suspended, or if a payment processor, hosting provider or other third party restricts the Platform's use for Client's business. If the problem is not resolved within 30 days, Contractor may terminate immediately by written notice, and Section 2.2 applies to any unpaid Deferred Build Balance.

9. Liability Limits

9.1 NO INDIRECT DAMAGES. TO THE FULLEST EXTENT PERMITTED BY LAW, NEITHER PARTY IS LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS OR LOST BUSINESS, ARISING FROM THIS AGREEMENT.

9.2 LIABILITY CAP. CONTRACTOR'S TOTAL LIABILITY UNDER THIS AGREEMENT IS CAPPED AT THE TOTAL FEES CLIENT HAS PAID IN THE 12 MONTHS BEFORE THE CLAIM.

9.3 Exceptions. The limits above do not apply to a breach of Section 6 (Confidentiality), other than a security incident described in Section 9.4, or to gross negligence or willful misconduct. Indemnification obligations under Section 10 are subject to the caps stated in that Section.

9.4 Security incidents. Contractor's total liability for all claims arising from any security incident affecting Client's data, however the claim is described, is capped at two (2) times the fees Client paid in the 12 months before the incident, and in no event more than $25,000. Section 9.1 applies to those claims.

10. Indemnification

10.1 By Contractor (IP claims). If a third party claims the Platform infringes their intellectual property, Contractor will defend Client against the claim. Contractor may, at its choice: (a) get Client the right to keep using the Platform; (b) fix or replace the infringing part without losing key functionality; or (c) if neither works, end the Order Form and refund a pro-rata share of prepaid fees. Contractor's total exposure for IP claims is capped at 2x the fees paid under the applicable Order Form.

10.2 By Client. Client will defend Contractor against third-party claims arising from: (a) Client's content or data; (b) Client's own business practices and regulatory obligations (including industry-specific requirements like FFL/firearms compliance, which are solely Client's responsibility); and (c) Client's use of the Platform in violation of this Agreement or law.

10.3 Process. The Party seeking coverage must: (a) promptly notify the other Party in writing (late notice does not relieve the other Party's obligations unless it was materially prejudiced by the delay); (b) allow the other Party to control the defense and any settlement (but the defending Party may not settle in a way that imposes obligations on the covered Party without written consent); and (c) cooperate reasonably, at the defending Party's expense.

11. Independent Contractor

Contractor is an independent contractor, not an employee, partner, or agent of Client. This Agreement does not create a partnership or joint venture.

12. Assignment and Client Representations

12.1 Assignment. Client cannot assign this Agreement without Contractor's written consent, except in connection with a sale of all or substantially all of Client's business, as long as the buyer agrees in writing to these terms. Contractor may assign this Agreement in a merger, acquisition, or sale of substantially all of its business.

12.2 Client representations. Client confirms that: (a) Client has the authority to sign this Agreement; (b) Client's content and data will not infringe anyone else's rights or break any law; (c) Client will follow all laws and regulations that apply to Client's business, including any industry-

specific licensing or compliance requirements; and (d) Client holds, and will keep in force, every license and registration its business requires, including its federal firearms license.

13. Force Majeure

Neither Party is liable for delays or failures caused by events outside its reasonable control, including natural disasters, internet outages at a third-party provider, government actions, pandemics, and similar events. The affected Party must give prompt written notice and make reasonable efforts to resume performance. If the disruption continues for more than 60 consecutive days, either Party may terminate the affected Order Form without further liability, except that Section 4 (data export) still applies and fees for Services already rendered remain owed.

14. Governing Law and Dispute Resolution

14.1 Governing law and venue. This Agreement is governed by the laws of the State of Nebraska. Any dispute will be resolved in the state or federal courts located in Douglas County, Nebraska, and both Parties consent to that jurisdiction.

14.2 Dispute resolution. Before initiating litigation, both Parties will attempt in good faith to resolve any dispute through direct negotiation for at least 30 days. If negotiation does not resolve the matter, either Party may request mediation in Douglas County, Nebraska, with costs shared equally. If mediation does not resolve the dispute within 60 days, either Party may proceed to litigation. This Section 14.2 does not apply to Contractor's action to collect unpaid fees or to a request for injunctive or other equitable relief under Section 6.4.

14.3 Attorney fees. In any action to enforce this Agreement, the prevailing Party may recover its reasonable attorney fees and costs from the other Party, to the extent permitted by law.

15. General

15.1 Entire agreement. This MSA and the applicable Order Form(s) are the whole agreement between Contractor and Client on this subject and replace any earlier discussions or proposals.

15.2 Changes to this MSA. Contractor may update this MSA for future clients (meaning new Order Forms signed after the update). Updates do not change the terms for any existing Order Form, including ones that are renewing month-to-month or annually, unless that Client agrees in writing. The commercial terms of an Order Form can be changed only by a written amendment that both Parties sign (email confirmation is sufficient), except that price changes under Section 2.5 and plan or add-on changes under Section 1.7 take effect as those Sections provide.

15.3 Severability. If any part of this MSA or an Order Form is found unenforceable, the rest stays in effect.

15.4 Notices. Notices under this MSA can be sent by email to the addresses in the Order Form.

15.5 Survival. Sections 2 (accrued payment obligations, including any unpaid Deferred Build Balance), 4 (Data), 5 (IP), 6 (Confidentiality), 7 (Warranties), 9 (Liability Limits), 10 (Indemnification), 12.2 (Client Representations), and 14 (Governing Law and Disputes) survive termination or expiration of this Agreement.

15.6 Execution. This MSA is not separately signed by each Client. A Client becomes bound by signing an Order Form that incorporates it by reference (see the Order Form template and signature page attached as Exhibit A).

[Remainder of this page intentionally left blank; Signature page to follow]

Exhibit A: Order Form Template

Fill in bracketed fields. This signed Order Form incorporates the Elkhorn Digital, LLC Master Services Agreement by reference.

This Order Form is entered into as of [EFFECTIVE DATE] and incorporates by reference the Elkhorn Digital, LLC Master Services Agreement (version effective November 4, 2026, available at https://elkhorndigital.com/legal/msa-2026-11-04.pdf) (the "MSA").

Client: [CLIENT LEGAL NAME], a [CLIENT ENTITY TYPE, e.g. sole proprietorship / LLC] located at [CLIENT ADDRESS] ("Client")

Federal firearms license (if any): [FFL NUMBER AND TYPE]; expiration date: [DATE]

Plan: [ ] Starter [ ] Pro [ ] Elite (by application; Shop & Payments and Distributor Integrations available by: [DATE]) [ ] Custom arrangement (describe): [DESCRIPTION]

Payment: start fee $[AMOUNT] due at signing; monthly fee $[AMOUNT]; Initial Term of [NUMBER] monthly payments (12 for Starter, 20 for Pro, 28 for Elite); Deferred Build Balance $[AMOUNT].

Add-ons: [ ] Custom Build Tracker [ ] Customer Reviews [ ] Bulletin [ ] FFL Transfers [ ] Analytics Dashboard [ ] Shop & Payments [ ] Distributor Integrations (priced per the Fee Schedule in effect on the Effective Date: $[TOTAL] per month and $[TOTAL] one time)

Fees:

- Start fee: $[AMOUNT], due upon execution of this Order Form, before work begins
- Monthly fee: $[AMOUNT] per month, billed month-to-month starting when the Platform goes live; if annual billing is elected instead, the annual amount is: $[ANNUAL AMOUNT] for the first annual period
- Payment schedule (if different from MSA Section 2 defaults): [DESCRIBE, e.g. 50% deposit / 50% on delivery]

Payment authorization: Client authorizes Contractor to charge the payment method Client designates in writing for each fee in this Order Form as it comes due. [PAYMENT METHOD DETAILS, if any]

Modifications to MSA (if any): [NONE, unless stated here]

By signing below, the Parties agree the Order Form and the MSA together form a binding agreement between them.

CONTRACTOR:

Elkhorn Digital, LLC, a Nebraska limited liability company

_____

Braeden P. Culp, Manager

Email: braeden.culp@elkhorndigital.com

Date: _____

CLIENT:

[CLIENT BUSINESS NAME]

_____

Name: [CLIENT SIGNER NAME]

Title: [CLIENT SIGNER TITLE]

Email: [CLIENT EMAIL]

Date: _____